

**LUJAN, et al v SANDHU, et al**

**23CV47054**

**MOTION TO BE RELIEVED AS COUNSEL FOR PLAINTIFF  
ALFONSO LUJAN**

Attorney Brian Davalos moves to be relieved as counsel of record for plaintiff Alfonso Lujan. Counsel's declaration meets the statutory requirements.

Accordingly, Counsel's motion to be relieved is **GRANTED**.

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the submitted Order.

Additionally, in the interests of justice, **the Mandatory Settlement Conference is continued from December 1, 2025 to February 23, 2026, at 8:30 a.m. in Dept. 2.**

# **BLAKE, et al v SAN ANDREAS SNF OPERATIONS, LLC**

**24CV47533**

## **PLAINTIFF'S MOTION TO COMPEL FURTHER DOCUMENT PRODUCTION**

This civil action involves claims for elder abuse, neglect, and wrongful death brought by Linda Cooper, Barry Blake, Arthur Blake, Virginia Blake (as successor in interest to Glenn Blake), as individuals and as successors in interest to their mother, Decedent Thelma Blake ("Decedent") (collectively, "Plaintiffs") against multiple Defendants.

Before the Court is Plaintiffs' motion to compel further responses to Requests for Production of Documents, Set One ("RPD") and for sanctions.

### **I. Factual and Procedural Background**

#### **A. Background Facts**

At all relevant times, the Decedent was a 96-year-old woman who qualified as an "elder" under Welfare and Institutions Code section 15610.27. (Complaint ¶ 10.) Defendant San Andreas SNF Operations LLC dba Golden San Andreas Care Center ("Care Center") was in the business of providing continuous skilled nursing care as a twenty four hour facility as defined in 72103 of Title 22 of the California Code of Regulations and California Health and Safety Code section 1250(c). (*Id.* ¶ 15.) On May 11, 2023, Decedent was admitted to Care Center for daily custodial care. (Declaration of Paige Farris ("Farris Decl.") ¶ 2.) It is alleged that while Decedent was a resident of the Care Center, she was neglected and that Care Center failed to monitor, diagnose and/or treat a urinary tract infection ("UTI") which eventually contributed to Decedent's death. (*Id.* ¶ 28.)

Plaintiffs allege that at all relevant times, Care Center was collectively owned by a myriad of businesses, all of which are named as Defendants herein, including CaFive Operations Holdings, LLC; CH CaFive Holdings LLC, IY Evergreen CA Holdings, LLC (collectively "Evergreen Defendants"); Avalon Care Center – San Andreas, LLC; Avalon Care LLC; Avalon Health Care, Inc.; Avalon Holding, Inc; and Avalon Health Care Management, Inc (collectively "Avalon Defendants.") Plaintiffs allege that the Evergreen